

EMTALA Compliance: Medical Screening and Transfer

Policy Number	POL-ED-012	Owner / Department	Emergency Department / Medical Staff / Compliance
Effective Date	2023-01-20	Version	3.5
Last Revised	2026-01-25	Next Review	2028-01-25
Approved By	Medical Executive Committee	Applies To	The Emergency Department, on-call medical staff, and any dedicated emergency service

1. Purpose

To ensure compliance with the Emergency Medical Treatment and Active Labor Act (42 USC 1395dd) so that any individual who comes to the ED receives an appropriate medical screening examination and stabilizing treatment regardless of ability to pay.

2. Policy

- Any individual who comes to the ED and requests examination or treatment receives a medical screening examination (MSE) within the hospital's capability to determine whether an emergency medical condition (EMC) exists — including active labor.
- If an EMC exists, provide treatment to stabilize within the hospital's capability, or arrange an appropriate transfer.
- Registration and the MSE must not be delayed to inquire about insurance or payment.

3. Appropriate Transfer

An individual with an unstabilized EMC may be transferred only when the patient requests transfer after being informed of the risks, or a physician certifies that the medical benefits outweigh the risks; the receiving facility has space, qualified personnel, and has accepted the patient; and records, qualified personnel, and equipment accompany the patient.

IMPORTANT — An EMTALA violation (e.g., failure to provide an MSE, or an inappropriate transfer) is a SEV-1 compliance event. Notify the ED Medical Director, Risk Management, and Compliance immediately; Compliance coordinates any required reporting to CMS.

4. References

- EMTALA, 42 USC 1395dd; 42 CFR 489.24.
- CMS State Operations Manual, Appendix V — Responsibilities of Medicare-Participating Hospitals in Emergency Cases.
- Related: POL-RM-013 (severity & reporting).